

INDIANA AIR PERMITTING

A Complete Plain-English Guide for Businesses & Industries

From Pre-Application Through Ongoing Compliance

Covering All Industries | IDEM Office of Air Quality & EPA Aligned

Indiana Department of Environmental Management (IDEM) — Office of Air Quality (OAQ) | U.S. EPA Region 5
(Chicago)

Primary References: 326 IAC (Title 326, Indiana Administrative Code) | IC 13-17 | 40 CFR Parts 51, 52, 60, 63, 70, 71

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CHAPTER 1: INTRODUCTION & PURPOSE OF THIS GUIDE

This guide explains the Indiana air permitting process from start to finish in plain English. It covers every major step — from determining whether your facility requires a permit, through the application process, to the recordkeeping, reporting, and inspection obligations that follow permit issuance. It applies to all industries operating in the State of Indiana.

Air permitting in Indiana is administered by the Indiana Department of Environmental Management (IDEM), through its Office of Air Quality (OAQ). Indiana has a single, statewide air permitting authority: IDEM. There are no county-level or city-level air permit programs in the state. Wherever your facility is located — Indianapolis, Gary, Evansville, Fort Wayne, South Bend, or rural farmland — the permitting agency is the same. This means that all permitting workload — application review, inspections, and enforcement — flows through one office in Indianapolis.

Indiana operates its air quality program under a State Implementation Plan (SIP) approved by the U.S. Environmental Protection Agency (EPA). This means Indiana runs its own permitting program day to day, but EPA Region 5 (headquartered in Chicago) has approved the program as meeting federal Clean Air Act requirements and retains oversight authority — particularly for Title V operating permits, which EPA reviews before issuance.

1.1 — Why Air Permitting Exists

The federal Clean Air Act of 1970 established a national framework for controlling air pollution. Major amendments in 1977 added the Prevention of Significant Deterioration (PSD) program (to protect already-clean air) and the New Source Review (NSR) program (to control new and modified pollution sources). The 1990 amendments created Title V (a comprehensive operating permit program for major sources) and significantly expanded controls on Hazardous Air Pollutants (HAPs).

The Act directs EPA to set National Ambient Air Quality Standards (NAAQS) — outdoor air concentration limits — for six "criteria pollutants" that harm public health and the environment. States must develop SIPs explaining how they will achieve and maintain those standards within their borders. Indiana's SIP, administered by IDEM, is the legal mechanism by which most of these federal requirements reach individual facilities.

Permits matter legally for several reasons: (1) operating without a required permit, or violating permit conditions, is a violation of both federal and Indiana law and can result in penalties, agreed orders, and even criminal prosecution; (2) permits provide "permit shields" — explicit lists of what your facility is and is not required to do — which protect compliant operators from open-ended enforcement; and (3) lenders, insurers, and acquirers routinely require evidence of permit compliance during due diligence.

1.2 — What Pollutants Are Regulated

Indiana air permits address several categories of pollutants:

- Criteria Pollutants (NAAQS pollutants): particulate matter (PM-10 and PM-2.5), ozone (O₃, formed in the atmosphere from NO_x and VOC precursors), carbon monoxide (CO), nitrogen oxides (NO_x), sulfur dioxide (SO₂), and lead (Pb).
- Volatile Organic Compounds (VOCs): regulated primarily because they are ozone precursors. Solvents, paints, coatings, gasoline, and many petrochemical products are major VOC sources — relevant for Indiana's large automotive, RV, and chemical manufacturing sectors.

- Hazardous Air Pollutants (HAPs): 187 chemicals listed by EPA as known or suspected to cause cancer, birth defects, or other serious health effects. Examples include benzene, formaldehyde, mercury, hydrochloric acid, and methylene chloride. Indiana's coal-fired power, steel, foundry, and chemical sectors are major HAP sources.
- Greenhouse Gases (GHGs): carbon dioxide (CO₂), methane (CH₄), nitrous oxide (N₂O), and several industrial gases. Regulated under PSD for major sources and under EPA's Mandatory Greenhouse Gas Reporting Program (40 CFR Part 98) for sources above reporting thresholds.
- Toxic Air Pollutants (state list): Indiana does not maintain a separate state-level toxics program beyond the federal HAP list. Sources subject to federal NESHAP/MACT standards must comply directly under 326 IAC 20 (which incorporates 40 CFR Part 63 by reference).

1.3 — Who Needs to Read This Guide

Indiana has one of the most industrially diverse economies in the Midwest. The major industries that routinely require air permitting in Indiana include:

- Steel and iron manufacturing — particularly the integrated steel mills and electric arc furnace operations concentrated in Lake County (Gary, East Chicago, Burns Harbor). Indiana is the largest steel-producing state in the U.S.
- Petroleum refining — most notably BP's Whiting Refinery in Lake County, one of the largest refineries in the Midwest.
- Coal-fired and natural gas electric generating units (EGUs) — operated by AES Indiana, Duke Energy Indiana, NIPSCO, Indiana Michigan Power, and Hoosier Energy, among others.
- Automotive manufacturing and assembly — Subaru (Lafayette), Toyota (Princeton), Honda (Greensburg), GM (Fort Wayne, Marion), Stellantis (Kokomo), and a large supplier base. Surface coating (painting) is a major VOC and HAP source.
- Pharmaceuticals and chemicals — Eli Lilly (Indianapolis), Roche Diagnostics, BASF, Dow, and numerous specialty chemical plants.
- Foundries and metal casting — Indiana has more iron foundries per capita than almost any other state.
- Recreational vehicle (RV) and manufactured housing — concentrated in the Elkhart/Goshen area, with surface coating, fiberglass, and adhesive emissions.
- Ethanol and biofuels — multiple corn ethanol plants in central and northern Indiana.
- Limestone quarrying, crushing, and Portland cement manufacturing — particularly in southern Indiana (Lawrence County, Monroe County, Putnam County).
- Grain handling, agriculture, and concentrated animal feeding operations (CAFOs) — large hog, dairy, and poultry operations across the state.
- Pulp and paper, printing, and food processing — including major brewing, baking, and grain milling operations.

NOTE: This guide reflects IDEM Office of Air Quality rules in effect as of 2026. Air regulations change frequently. Before submitting any permit application or making a compliance decision, verify the current rule text at www.idem.in.gov and the current state code at iac.iga.in.gov.

CHAPTER 2: REGULATORY FRAMEWORK — WHO MAKES AND ENFORCES THE RULES

Three regulatory bodies set or enforce the air pollution rules that affect Indiana facilities: IDEM at the state level, EPA at the federal level, and (in narrow situations) the Indiana Air Pollution Control Board (APCB). This chapter explains each of their roles and how they interact.

2.1 — Indiana Department of Environmental Management (IDEM), Office of Air Quality (OAQ)

IDEM is the primary air permitting agency in Indiana. Within IDEM, the Office of Air Quality (OAQ) handles all permit drafting, technical review, public notice, issuance, inspections, and enforcement for air pollution sources statewide.

Key contact information:

- Mailing & physical address: 100 N. Senate Avenue, IGCN 1003, Indianapolis, IN 46204-2251
- Main phone: (317) 232-8603 or toll-free (800) 451-6027
- Website: www.idem.in.gov → navigate to "Air Quality"
- Permit applications and forms: www.in.gov/idem/airquality/permits/
- Online services & e-filing: idem.access.in.gov (IDEM's online permitting and reporting portal)
- Email for general OAQ inquiries: airpermits@idem.in.gov

The Indiana air rules are codified in Title 326 of the Indiana Administrative Code (326 IAC). The Indiana statutes that authorize those rules are in Indiana Code (IC) Title 13, primarily IC 13-17 (Air Pollution Control). The administrative code chapters most relevant to permitting are:

- 326 IAC 2 — Permit Review Rules (the master permit-program chapter)
- 326 IAC 2-1.1 — General provisions, including the basic permit-required rule
- 326 IAC 2-2 — Prevention of Significant Deterioration (PSD) requirements
- 326 IAC 2-3 — Emission Offset (Nonattainment NSR) requirements
- 326 IAC 2-5.1 — Minor source construction and operating permits
- 326 IAC 2-5.5 — Federally Enforceable State Operating Permits (FESOPs / synthetic minor permits)
- 326 IAC 2-6 — Source Registration and Annual Emissions Statements
- 326 IAC 2-7 — Part 70 (Title V) Operating Permits
- 326 IAC 2-8 — Part 70 Permit Revisions
- 326 IAC 2-9 — General Source Operating Permits (GSOPs) — preconfigured permits for common source types
- 326 IAC 6 — Particulate Matter rules
- 326 IAC 7 — Sulfur Dioxide rules
- 326 IAC 8 — Volatile Organic Compound rules
- 326 IAC 10 — Nitrogen Oxides rules
- 326 IAC 14 — Emergency Provisions
- 326 IAC 20 — Hazardous Air Pollutants (incorporating 40 CFR Part 63 NESHAP/MACT standards by reference)
- 326 IAC 24 — Greenhouse Gases / NSPS for Stationary Engines

2.2 — The Indiana Air Pollution Control Board (APCB)

The Air Pollution Control Board is the citizen body that formally adopts the rules in 326 IAC. The Board does not issue permits, conduct inspections, or take enforcement action — that is IDEM's role. The Board's job is rulemaking. Its members are appointed by the Governor and include representatives from industry, environmental groups, local government, agriculture, and the general public.

If you are interested in tracking proposed rule changes that could affect your facility, watch the APCB meeting schedule and the Indiana Register (in.gov/legislative/iac/iar.html). Rulemaking notices appear in the Indiana Register, and comment periods are open to the public.

2.3 — U.S. EPA Region 5

Indiana is in EPA Region 5, which also covers Illinois, Michigan, Minnesota, Ohio, and Wisconsin, plus 35 federally recognized tribes. Region 5 oversees IDEM's air program and has direct review and enforcement authority in several areas.

Key contact information:

- Address: 77 West Jackson Boulevard, Chicago, IL 60604-3590
- Main phone: (312) 353-2000 or toll-free (800) 621-8431
- Website: www.epa.gov/aboutepa/epa-region-5
- Air & Radiation Division: handles SIP review, Title V oversight, federal enforcement

EPA's role in Indiana permitting includes: (1) reviewing every proposed Title V permit during a mandatory 45-day federal review period — EPA can object to permits and require IDEM to revise them; (2) reviewing and approving SIP revisions; (3) auditing IDEM's enforcement program; (4) directly enforcing federal standards (NSPS, NESHAP, PSD) when state action is inadequate; and (5) administering federal-only programs such as the Acid Rain (Title IV) program and the Cross-State Air Pollution Rule (CSAPR), both of which affect numerous Indiana power plants.

2.4 — Indiana's Source Registration and General Permit Systems

Indiana does not have a true "permit by rule" system where a source self-certifies and operates without case-specific review. Indiana does, however, have two streamlined mechanisms that reduce the burden for smaller or simpler sources:

- Source Registration (326 IAC 2-6): For very small sources whose actual emissions fall below specified thresholds (generally 25 tons/year of any criteria pollutant, 1 ton/year of any single HAP, or 2.5 tons/year of total HAPs), Indiana may require registration rather than a permit. Registration involves submitting source information annually and paying a small fee, but does not require pre-construction approval in most cases. Verify applicability at IDEM's small business assistance pages.
- General Source Operating Permits (GSOPs) under 326 IAC 2-9: For specific common source types (such as small concrete batch plants, asphalt plants, hot mix plants, certain natural gas-fired boilers, and grain elevators), IDEM has issued pre-written "general permits" that any qualifying source may opt into by submitting a simple Notice of Intent. This avoids the longer source-specific permit process.

NOTE: Indiana's Source Registration is a low-burden authorization for very small sources — it is not a substitute for a construction permit. Most new equipment installations still require pre-

construction approval under 326 IAC 2-1.1-3, even for small sources. Always check with IDEM OAQ before assuming registration is sufficient.

2.5 — Indiana's Industrial Context

Indiana's air quality regulatory situation is shaped by its long industrial history and concentration of heavy manufacturing:

- Indiana is the largest steel-producing state in the U.S., and Lake County (NW Indiana) contains some of the largest integrated steel mills and coke ovens in North America. This historic concentration drives both the state's most complex permitting issues and its most persistent nonattainment problems.
- Indiana has historically been a coal-heavy electricity state — although coal generation has declined significantly since 2015, the state still operates several large coal-fired EGUs subject to the Mercury and Air Toxics Standards (MATS, 40 CFR Part 63 Subpart UUUUU) and the Cross-State Air Pollution Rule (CSAPR).
- BP's Whiting refinery in NW Indiana is one of the largest in the Midwest and is subject to a long history of consent decrees and PSD-related enforcement actions.
- Indiana's automotive cluster is one of the largest in the United States and creates significant VOC, HAP, and PM emissions from surface coating — these are heavily regulated under both federal MACT (40 CFR Part 63 Subpart IIII and others) and Indiana's VOC rules in 326 IAC 8.
- Lake and Porter Counties have been in ozone nonattainment for the 2008 and 2015 8-hour ozone NAAQS, putting them under more stringent NSR requirements. Lake County has also had historical SO₂ and lead nonattainment issues tied to specific facilities. Check the EPA Green Book (www.epa.gov/green-book) for current designations before assuming attainment.

CHAPTER 3: DO YOU NEED A PERMIT?

Determining whether your facility needs an air permit — and which kind — is the first critical step. This chapter walks through that determination in order.

3.1 — The Basic Rule

Under 326 IAC 2-1.1-3, no person may begin construction, modification, or operation of any "facility" or "emissions unit" that may emit air pollutants without first obtaining IDEM authorization, unless an exemption applies. "Construction" is interpreted broadly: it includes physical installation, foundation pouring, ordering specially-fabricated equipment, and certain contractual commitments.

IMPORTANT: Indiana defines "begin construction" broadly. Pouring concrete foundations, installing process equipment, or executing non-cancellable equipment contracts can all be interpreted as starting construction. If you begin construction before IDEM issues your permit (other than initial site clearing and ordering off-the-shelf equipment), you face enforcement under IC 13-30-4. Do not break ground until your permit is in hand.

3.2 — Step One: Check for Exemptions

Indiana exempts certain source categories from the requirement to obtain a construction or operating permit. The principal exemption regulation is 326 IAC 2-1.1-3(d), with additional exemptions scattered through 326 IAC 2. Common exempt source categories include:

- Mobile sources (cars, trucks, locomotives, aircraft, ships)
- Comfort heating and air conditioning units serving buildings only (not process)
- Most residential and small commercial natural gas combustion below specified heat inputs
- Laboratory equipment used for chemical or physical analysis (R&D and QA labs)
- Small stationary internal combustion engines below specified horsepower (varies by fuel)
- Welding operations meeting certain throughput limits
- Most agricultural operations and field crop activities (note: large CAFOs may still need permits)
- Equipment installed solely for emergency use (subject to runtime limits)

Exemption is not automatic in the sense that no paperwork is needed: you must document the basis for any exemption in your facility records and be prepared to demonstrate it during an IDEM inspection. If you reach the exemption threshold (for example, by adding equipment, increasing throughput, or changing materials), the exemption disappears and you may need a permit retroactively. Maintain exemption documentation alongside other compliance records.

3.3 — Step Two: Calculate Your Potential to Emit (PTE)

Potential to Emit (PTE) is the single most important number in air permitting. It determines which permit you need, which federal standards apply, and whether you are a major source under Title V or PSD.

PTE is defined as the maximum capacity of a source to emit a pollutant under its physical and operational design, assuming:

- Operation 24 hours per day, 365 days per year (8,760 hours/year) at maximum capacity
- No emission controls in place — UNLESS those controls are made "federally enforceable" by being written as permit conditions

- Worst-case fuels, raw materials, and operating modes you could legally use without a permit modification

Common tools and methods for calculating PTE:

- EPA AP-42 (Compilation of Air Pollutant Emission Factors) — the most widely used emission factor reference: www.epa.gov/air-emissions-factors-and-quantification/ap-42-compilation-air-emissions-factors
- Manufacturer's emission specifications and stack test data from identical units
- Mass balance calculations (especially for solvents and VOC-containing products)
- EPA WebFIRE database and emission factor clearinghouses
- IDEM's published emission factor guidance for specific industries (available through OAQ's website)

If your unrestricted PTE pushes you into a higher permit category, you can sometimes accept federally enforceable operating limits (hours, throughput, fuel sulfur content, control device operation) to bring PTE down. This is exactly what a FESOP (synthetic minor permit) does — see Section 3.5.

3.4 — Step Three: Determine Your Permit Type

Once you know your PTE, use the table below to identify which permit category applies:

Emission Level (PTE)	Permit Type	Governing Regulation
Below exemption thresholds; qualifies for categorical exemption	No permit; document exemption basis	326 IAC 2-1.1-3(d) (exemptions)
Below 25 tpy of any criteria pollutant and very small HAPs	Source Registration	326 IAC 2-6
Qualifies as a defined general permit source category (concrete plant, hot mix asphalt, certain boilers, etc.)	General Source Operating Permit (GSOP)	326 IAC 2-9
Above exemption/registration; below 50% of any major-source threshold	Minor Source Construction Permit (MSCP) and/or Minor Source Operating Permit (MSOP)	326 IAC 2-5.1
Unrestricted PTE above major thresholds, but willing to accept federally enforceable limits to stay below them	Federally Enforceable State Operating Permit (FESOP) — "synthetic minor"	326 IAC 2-5.5
Major source for criteria pollutants in attainment area (≥ 100 tpy for listed categories or ≥ 250 tpy otherwise)	PSD Construction Permit + Title V Operating Permit	326 IAC 2-2 (PSD) + 326 IAC 2-7 (Title V)

Major source in a nonattainment area (Lake/Porter Counties for ozone)	Emission Offset (Nonattainment NSR) Construction Permit + Title V	326 IAC 2-3 + 326 IAC 2-7
Any source with ≥ 100 tpy any criteria pollutant, ≥ 10 tpy single HAP, or ≥ 25 tpy combined HAPs	Title V Operating Permit	326 IAC 2-7

3.5 — Major Source Thresholds in Detail

Under federal PSD rules incorporated into 326 IAC 2-2, the major source threshold depends on the source category:

- 100 tons per year of any regulated NSR pollutant — for any of 28 listed source categories (includes fossil-fuel steam electric plants >250 MMBtu/hr, petroleum refineries, kraft pulp mills, iron and steel mill plants, primary smelters, Portland cement plants, chemical process plants, glass fiber processing, and others — see 40 CFR 52.21(b)(1)(i)(a))
- 250 tons per year of any regulated NSR pollutant — for all other source categories

Under Title V (326 IAC 2-7), the major source thresholds are:

- 100 tpy or more of any criteria pollutant (or its precursors)
- 10 tpy or more of any single HAP
- 25 tpy or more of combined HAPs

In Lake and Porter Counties (currently designated nonattainment for the 2015 8-hour ozone NAAQS), the major source threshold for ozone precursors (NO_x and VOC) is lowered. For "moderate" ozone nonattainment, the threshold is 100 tpy of NO_x or VOC; for "serious," it is 50 tpy; for "severe," 25 tpy. Verify the current classification of Lake/Porter at www.epa.gov/green-book before designing a project, because reclassifications happen.

3.6 — Significant Emission Rates (SER) — When Modifications Trigger PSD

A modification at an existing major source triggers PSD review only if the net emissions increase from the modification exceeds the Significant Emission Rate (SER) for that pollutant. The federal SERs (also adopted in 326 IAC 2-2) are:

Pollutant	Significant Emission Rate (tpy)	Notes
Carbon Monoxide (CO)	100	
Nitrogen Oxides (NO _x)	40	Ozone precursor
Sulfur Dioxide (SO ₂)	40	
PM (total)	25	
PM-10	15	
PM-2.5 (direct)	10	Also SO ₂ ≥ 40 tpy and NO _x ≥ 40 tpy as precursors

VOC	40	Ozone precursor
Lead (Pb)	0.6	
Fluorides	3	
Sulfuric Acid Mist	7	
Hydrogen Sulfide (H ₂ S)	10	
Total Reduced Sulfur (TRS)	10	Pulp mills
Greenhouse Gases (CO ₂ e)	75,000	Anyway-source rule only

Even a small emissions increase requires a permit modification through IDEM — but PSD's full BACT and modeling requirements only kick in if the net change exceeds the SER. "Netting" — taking credit for contemporaneous emissions decreases at the source over the past 5-year window — can sometimes keep a project below the SER. Netting analyses must be carefully documented.

NOTE: PSD applicability is one of the most enforcement-prone areas in U.S. air law. EPA has pursued multi-hundred-million-dollar settlements against utilities and refiners for failing to obtain PSD permits for what they characterized as routine maintenance. When in doubt about whether a project triggers PSD, engage a qualified consultant or environmental attorney before construction.

CHAPTER 4: TYPES OF AIR PERMITS IN INDIANA

This chapter describes each permit type in detail. Indiana's permit suite is organized around two axes: (1) construction permits vs. operating permits, and (2) minor source vs. major source.

4.1 — Source Registration (326 IAC 2-6)

Indiana's Source Registration is the entry-level authorization for very small sources whose actual emissions fall below specified thresholds (generally 25 tpy of any criteria pollutant, 1 tpy of any single HAP, 2.5 tpy combined HAPs, and below de minimis lead and fluoride thresholds).

Registration involves: (1) submitting initial source information to IDEM; (2) paying the registration fee; (3) submitting an annual emission statement; and (4) keeping records demonstrating you remain below thresholds. Registration is fastest and cheapest of any IDEM authorization. It generally does not require pre-construction approval but does require notice when adding equipment that changes your applicability status.

Timeline: typically 30–60 days from submittal to confirmation.

4.2 — General Source Operating Permits (GSOPs) — 326 IAC 2-9

For specific common source categories, IDEM has issued pre-approved permits that any qualifying source may opt into. Current GSOP categories include (verify current list at IDEM):

- Concrete batch plants
- Hot mix asphalt plants
- Crushed stone (aggregate) facilities
- Small natural gas-fired boilers and process heaters
- Grain elevators and grain handling facilities
- Certain emergency engines and stationary internal combustion engines
- Surface coating operations meeting specific size and emission criteria

Opting into a GSOP requires submitting a Notice of Intent (NOI) with source-specific information and the applicable fee. The advantage is speed and predictability: terms are pre-set, public participation has already occurred, and IDEM review is brief (often 30–60 days). The disadvantage is rigidity: you take the permit as written, with no negotiation over conditions.

4.3 — Minor Source Construction Permit (MSCP) and Minor Source Operating Permit (MSOP) — 326 IAC 2-5.1

Most Indiana sources that need a permit fall into the minor source category. Construction permits authorize building/installing equipment; operating permits authorize ongoing operation. For a given project, you may need:

- Construction permit only (e.g., one-time installation, after which the source operates under a federally enforceable limit or below registration thresholds)
- Construction + operating permit (most common — IDEM often issues these as a combined document)
- Operating permit only (e.g., a transfer of ownership, or a permit issued to memorialize an exempt or grandfathered source)

MSCP/MSOP processing time: typically 4–9 months from completeness determination to issuance, depending on complexity, RAIs, and whether public notice is triggered.

4.4 — Federally Enforceable State Operating Permit (FESOP) — 326 IAC 2-5.5

A FESOP — sometimes called a "synthetic minor" permit — is used when your unrestricted PTE would make you a major source, but you are willing to accept enforceable limits (production caps, hours of operation, fuel restrictions, control device operating requirements) that keep actual PTE below the major source thresholds.

FESOPs avoid the much heavier Title V program by establishing federally enforceable conditions. They are very common in Indiana for medium-sized manufacturing, automotive parts coating, smaller chemical plants, and food processing operations.

4.5 — Prevention of Significant Deterioration (PSD) Construction Permit — 326 IAC 2-2

PSD applies to new major sources and major modifications of existing major sources located in areas designated as attainment or unclassifiable for the pollutant of concern. Most of Indiana is in attainment for most pollutants, so PSD is the dominant major-source program in the state.

Key PSD requirements:

- Best Available Control Technology (BACT) — a top-down analysis of available controls
- Air quality dispersion modeling demonstrating compliance with NAAQS and PSD increments
- Class I area analysis — if your facility is within 100 km of a federal Class I area, Federal Land Manager (FLM) notification is required
- Additional impacts analysis (visibility, vegetation, soils, growth-related impacts)
- Public notice with a minimum 30-day comment period

BACT — Top-Down Analysis Procedure:

1. Identify all potentially applicable control technologies, including those used at similar sources elsewhere (use EPA's RACT/BACT/LAER Clearinghouse — RBLC — at <https://www.epa.gov/catc/ractbactlaer-clearinghouse-rblc-basic-search>)
2. Rank technologies from most stringent to least stringent based on demonstrated emission reduction
3. Evaluate the top-ranked technology for technical, energy, economic, and environmental feasibility — IDEM requires detailed cost-effectiveness analysis (typically expressed as \$/ton removed)
4. If the top technology is infeasible (with documented justification), proceed to the next-most-stringent. Document every elimination step.
5. Select the most stringent feasible technology as BACT; propose corresponding emission limits and operating conditions

Air Quality Modeling — Indiana requires demonstration that the proposed source will not cause or contribute to NAAQS violations or exceedances of PSD increments. AERMOD is the standard EPA-approved model. For Indiana, important terrain considerations include:

- Flat terrain across most of central and northern Indiana

- Rolling and hilly terrain in southern Indiana (Brown, Monroe, Jackson, Crawford, Harrison, and Perry Counties) — terrain effects must be evaluated
- Lake Michigan shoreline meteorology in NW Indiana — complex coastal/inland transitions affect dispersion
- Urban heat island effects in Indianapolis, Gary, Fort Wayne, and Evansville

PSD increments establish the maximum allowable increase in ambient concentrations of certain pollutants above an established baseline. Areas designated Class II (most of Indiana) allow moderate increments; Class I areas allow very small increments. There are no Class I areas located within Indiana itself, but Mammoth Cave National Park (Kentucky) and several Class I areas in neighboring states could be affected by emissions from sources near state borders.

4.6 — Emission Offset Construction Permit (Nonattainment NSR) — 326 IAC 2-3

If your major source or major modification is located in a designated nonattainment area for the pollutant of concern, you face nonattainment NSR requirements instead of (or in addition to) PSD. In Indiana, this currently applies primarily in Lake and Porter Counties for ozone (and any associated NOx/VOC precursor analyses). Always verify current designations at www.epa.gov/green-book.

Nonattainment NSR is more stringent than PSD in two main ways:

- Lowest Achievable Emission Rate (LAER), not BACT, applies. LAER is defined as the most stringent emission rate achieved in practice by any similar source — and unlike BACT, cost is NOT a factor in LAER. If the best-performing similar plant on the planet emits at X, your facility must meet X.
- Emission offsets are required: you must obtain enforceable emission reductions from existing sources in the same area to more than offset your new emissions. For marginal/moderate ozone nonattainment in Lake/Porter (current designation as of last verification), the offset ratio is 1.15:1 for VOC and NOx; for serious nonattainment, the ratio is 1.2:1; for severe, 1.3:1. Verify the current classification because reclassifications happen.

Offsets can be obtained through emission reduction credits (ERCs) generated by other facilities. IDEM maintains an ERC registry and tracks transactions.

4.7 — Title V Operating Permit (Part 70) — 326 IAC 2-7

Title V is the master operating permit for major sources. It does not authorize any new emissions — it consolidates and clarifies all federal and state requirements that apply to the source into one document, and imposes additional monitoring, recordkeeping, and reporting obligations to ensure compliance.

A Title V permit typically contains:

- All emission limits from underlying permits, NSPS, and NESHAP standards
- Monitoring requirements (CEMS, parametric monitoring, periodic stack testing)
- Recordkeeping requirements
- Reporting requirements (semiannual deviation reports, annual compliance certification)
- Permit shield provisions — protections from enforcement for requirements explicitly addressed and determined not to apply
- A compliance schedule for any noncompliance

Title V permits run for 5 years. Renewal applications must be submitted at least 6 months — and Indiana strongly encourages 12 months — before expiration. If you file a timely renewal application, your existing permit remains in effect (an "application shield") until IDEM acts on the renewal.

IMPORTANT: Title V permits go through EPA's 45-day federal review period before IDEM may issue them. EPA can object during this period. If objected to, IDEM must address EPA's concerns before issuance — which can add months to your timeline. Build this into project planning.

CHAPTER 5: PRE-APPLICATION STEPS

The work you do before filing a permit application is more important than the application itself. Mistakes made in the pre-application phase — incomplete project definition, undercounting emissions, missing applicable federal standards — create RAIs (Requests for Additional Information), delays, and sometimes enforcement exposure. Plan for 2–6 months of pre-application work for a typical minor source project, and 6–18 months for a PSD project.

5.1 — Step One: Fully Define Your Project

Before any calculation, write out a complete project description that captures every emission unit and every relevant operating parameter. This includes:

- Every emission unit (boilers, process heaters, engines, tanks, coating operations, fugitive sources, cooling towers, baghouses, scrubbers)
- Maximum design capacity for each unit (MMBtu/hr, lbs/hr throughput, gallons/day, etc.)
- All fuels and raw materials, with worst-case characteristics (highest sulfur content fuel oil you might burn, highest-VOC coating you might use)
- Stack physical parameters (height, diameter, exit velocity, exit temperature)
- All control devices, with design specifications and expected efficiencies
- All bypass routes (vents that bypass a control device under any condition)
- Hours of operation (and any seasonal limits)
- Startup, shutdown, and malfunction (SSM) considerations

5.2 — Step Two: Calculate PTE for Every Pollutant

For every emission unit, calculate PTE for every regulated pollutant that the unit might emit. Even if you think a pollutant will be negligible, document it. IDEM and EPA will ask. Use AP-42 emission factors when available; manufacturer-supplied factors or stack test data from identical units when not.

Sum unit-level PTE to get facility-wide PTE. Compare to major source thresholds. If you exceed a threshold for any pollutant, you are a major source for that pollutant.

5.3 — Step Three: Identify All Applicable Federal Standards

Two parallel federal programs must be cross-checked against every emission unit:

- New Source Performance Standards (NSPS, 40 CFR Part 60) — apply to specific source categories regardless of whether your facility is a major source. NSPS are based on source-category construction/modification dates.
- National Emission Standards for Hazardous Air Pollutants (NESHAP / MACT, 40 CFR Parts 61 and 63) — apply to listed source categories that emit HAPs. Some are major source MACTs (only applicable if facility is a major HAP source); others are area source MACTs (applicable regardless of major-source status).

NSPS subparts most relevant to Indiana industries include:

- Subpart Da — Electric Utility Steam Generating Units (newer fossil EGUs)
- Subpart Db — Industrial-Commercial-Institutional Steam Generating Units
- Subpart Dc — Small Industrial-Commercial-Institutional Steam Generating Units
- Subpart J/Ja — Petroleum Refineries (BP Whiting and others)

- Subpart Kb — Volatile Organic Liquid Storage Vessels
- Subpart OOO — Nonmetallic Mineral Processing Plants (limestone crushing)
- Subpart UU — Asphalt Concrete Plants
- Subpart IIII — Stationary Compression Ignition Internal Combustion Engines
- Subpart JJJJ — Stationary Spark Ignition Internal Combustion Engines
- Subpart AAa, OOO, OOOO, OOOOa, OOOOb, OOOOc — Crude Oil and Natural Gas operations

MACT/NESHAP subparts most relevant to Indiana industries include:

- Subpart FFFF — Miscellaneous Organic Chemical Manufacturing
- Subpart EEEE — Organic Liquids Distribution
- Subpart IIII — Surface Coating of Automobiles and Light-Duty Trucks (Indiana auto industry)
- Subpart MMMM — Surface Coating of Miscellaneous Metal Parts and Products
- Subpart EEEE / KKKK — Industrial, Commercial, and Institutional Boilers (Boiler MACT)
- Subpart ZZZZ — Stationary Reciprocating Internal Combustion Engines (RICE MACT)
- Subpart UUUUU — Mercury and Air Toxics Standards (MATS) for coal-fired utility boilers
- Subpart EEEEE — Iron and Steel Foundries
- Subpart FFFFF — Integrated Iron and Steel Manufacturing
- Subpart CCCCCC — Gasoline Dispensing Facilities (area source)

5.4 — Step Four: BACT/LAER Analysis (if PSD or NA-NSR applies)

If your project triggers PSD or nonattainment NSR, the BACT/LAER analysis is the technical core of your application. Allow 2–4 months for this work.

- Search the EPA RBLC database for similar source determinations made in the past 5–10 years
- Document your top-down (BACT) or most-stringent-achieved (LAER) analysis in detail
- Prepare cost-effectiveness calculations in \$/ton removed for each control option you reject; IDEM will scrutinize these
- Be prepared for IDEM and EPA to push back on cost thresholds — there is no fixed maximum, but \$/ton numbers that fall well below recently-issued BACT determinations for similar sources will be rejected

5.5 — Step Five: Air Quality Modeling (if PSD applies)

Modeling is a specialized exercise typically performed by a consultant. Key Indiana modeling considerations:

- AERMOD is the standard model; use the most recent EPA-approved version
- Five years of representative meteorological data — IDEM typically directs applicants to specific Indiana-region meteorological datasets
- Terrain data from the National Elevation Dataset; resolution depends on location
- Lake Michigan shoreline modeling for NW Indiana sources may require additional analysis (coastal fumigation, lake breeze effects)
- Modeling protocol should be reviewed with IDEM modeling staff BEFORE running production models — this avoids rework

5.6 — Step Six: Pre-Application Meeting with IDEM

For any significant project — and always for PSD or NA-NSR projects — request a pre-application meeting with IDEM OAQ. This meeting is informal, confidential, and free. Its purpose is to identify potential issues before you invest in a full application.

To request a meeting:

- Email airpermits@idem.in.gov or call OAQ Permits Branch at (317) 232-8603
- Provide a 1–3 page project summary in advance (facility, project description, emissions estimates, permit type sought)
- Come prepared with specific questions — IDEM staff time is better used answering specific concerns than re-explaining basic regulatory requirements

5.7 — Step Seven: Application Fees

Permit application fees in Indiana are set by 326 IAC 2-1.1-7. Fees vary considerably by permit type and source size. Approximate ranges (verify current at www.in.gov/idem/airquality/permits/):

- Source Registration: relatively modest annual fee
- General Source Operating Permit (GSOP) NOI: a few hundred to low thousands of dollars
- Minor Source Construction Permit: typically \$1,000–\$5,000 application fee
- FESOP: \$3,000–\$10,000 range depending on complexity
- PSD construction permit: \$10,000–\$50,000+ application fee
- Title V annual fee: per-ton fee on actual emissions, capped at 4,000 tons per pollutant — current per-ton rate set annually by IDEM (recent rates around \$50–\$55/ton; verify current)

Fees change at least annually. Always verify the current fee schedule before budgeting.

CHAPTER 6: THE APPLICATION PROCESS — STEP BY STEP

6.1 — Step One: Assemble the Application Package

A complete Indiana air permit application typically includes:

6. IDEM application form (varies by permit type — current forms at www.in.gov/idem/airquality/permits/forms/)
7. Facility description (site map, plot plan, process flow diagrams, equipment list)
8. Detailed emission unit information for every emission unit (capacity, fuel, stack parameters, controls)
9. Emission calculations with all factors, methods, and assumptions documented
10. Applicability analysis for every potentially applicable NSPS and NESHAP subpart
11. BACT/LAER analysis (if applicable)
12. Modeling protocol and results (if applicable)
13. Class I area analysis and FLM notification documentation (if applicable)
14. Compliance demonstration plan (proposed monitoring, recordkeeping, reporting)
15. Application fee — check or electronic payment
16. Responsible official certification (signed by a corporate officer, plant manager with delegated authority, or other person meeting 326 IAC 2-7-1(34))

6.2 — Step Two: Submit the Application

IDEM accepts applications via three channels:

- Online: idem.access.in.gov — IDEM's e-services portal. Strongly preferred for most applications. Submission generates an immediate receipt with tracking number.
- Mail: IDEM Office of Air Quality, 100 N. Senate Avenue, IGCN 1003, Indianapolis, IN 46204-2251
- In person: same address, during normal business hours (call ahead for security access)

Submit one complete copy of the application. For modeling-heavy applications, IDEM may request additional copies of modeling files in specific electronic formats — coordinate with the assigned modeler.

6.3 — Step Three: Completeness Review

IDEM has 30 calendar days to determine whether your application is administratively complete (60 days for Title V applications). "Complete" does not mean "approvable" — it only means that all required forms, fees, and information categories are present so substantive review can proceed.

If your application is incomplete, IDEM will send a Notice of Deficiency identifying what is missing. You typically have 30 days to respond; failure to respond can result in the application being returned (and your fees forfeited).

6.4 — Step Four: Technical Review and Requests for Additional Information (RAIs)

After completeness, IDEM begins technical review. Reviewers will likely send you one or more RAIs asking for clarification, additional calculations, alternative emission factor justifications, or revisions to your proposed conditions.

Tips for handling RAIs efficiently:

- Respond promptly — long response times prolong your overall permit timeline
- Answer the question asked, not the question you wish was asked
- If you disagree with a reviewer's interpretation, say so clearly and provide your supporting rationale — don't simply restate your original position
- If you need more time, request an extension in writing before the deadline
- Keep a log of all RAI exchanges; you'll need this if the permit later becomes the subject of enforcement

6.5 — Step Five: Draft Permit

Once technical review is complete, IDEM issues a draft permit. Review it carefully — this is your opportunity to identify and request corrections before the public sees it. Common drafting errors to check:

- Wrong emission unit capacities or fuel types
- Numerical errors in emission limits
- Inconsistent monitoring requirements
- References to outdated rule citations
- Permit shield language that is narrower than supported
- Compliance schedule errors

Submit comments on the draft permit in writing within IDEM's stated deadline (typically 30 days).

6.6 — Step Six: Public Notice and Comment

Most permits require public notice before issuance. The requirements vary by permit type:

Permit Type	Newspaper Notice?	IDEM Website?	Comment Period
Source Registration	No	No	None
GSOP Notice of Intent	No	Limited	Generally none (notice occurred when GSOP itself was issued)
Minor Source Construction Permit	Sometimes (case-by-case)	Yes	30 days
FESOP	Yes	Yes	30 days
PSD Construction Permit	Yes	Yes	30 days minimum; public hearing if requested
Emission Offset (NA-NSR) Permit	Yes	Yes	30 days; public hearing if requested
Title V Issuance & Renewal	Yes	Yes	30 days, then 45-day EPA review

Title V Significant Modification	Yes	Yes	30 days, then 45-day EPA review
Title V Minor Modification	No	No	None

Newspaper notice is published in a paper of general circulation in the county where the source is located. IDEM also posts notice on its website. Any person may submit written comments during the comment period; IDEM must respond to all substantive comments in a Response to Comments document.

6.7 — Step Seven: Public Hearing (if triggered)

A public hearing is held when: (1) a hearing is required by rule (most major permits when requested); (2) significant public interest is demonstrated; or (3) IDEM determines a hearing would aid decision-making. Hearings are formal but not adversarial — citizens speak, IDEM and the applicant listen and document. The hearing typically extends the comment period by 15–30 days.

6.8 — Step Eight: EPA Review (Title V Only)

After IDEM's response to comments, Title V permits are forwarded to EPA Region 5 for a mandatory 45-day federal review. EPA may object to the proposed permit; if EPA does object, IDEM must resolve the objection before issuance. EPA may also waive its review early, allowing IDEM to issue.

6.9 — Step Nine: Permit Issuance

Once all reviews are complete, IDEM issues the final permit. You receive the permit electronically and (usually) in paper. Effective date is the issuance date unless otherwise specified.

IMPORTANT: DO NOT BEGIN CONSTRUCTION BEFORE PERMIT ISSUANCE. Under IC 13-30-4-1, any person who violates Indiana's air pollution laws is subject to civil penalties of up to \$25,000 per day per violation, plus EPA's federal civil penalty of up to \$70,117 per day per violation (2025 inflation-adjusted). Constructing without a permit, or starting construction during the pendency of a permit application, is one of the most consistently enforced violations under Indiana air law. The narrow exceptions for site clearing and ordering off-the-shelf equipment are interpreted strictly — if in doubt, wait.

CHAPTER 7: INDUSTRY-SPECIFIC GUIDANCE

This chapter highlights permitting considerations for Indiana's most significant air-emitting industries. The guidance below is illustrative — every facility is unique, and the applicable federal and state requirements should be confirmed for your specific equipment and operations.

7.1 — Integrated Iron and Steel

Northwest Indiana's steel cluster (USS Gary Works, Cleveland-Cliffs Indiana Harbor, Cleveland-Cliffs Burns Harbor, NLMK Indiana, ArcelorMittal/Cleveland-Cliffs operations) is one of the largest integrated steel-making regions in North America. Permitting considerations:

- Sources: coke ovens, blast furnaces, basic oxygen furnaces (BOFs), continuous casters, hot strip mills, pickling lines, finishing operations
- Applicable NSPS: Subparts Z (Ferroalloy Production), AAa (Steel Plants — EAFs), and others
- Applicable MACT: Subpart FFFFF (Integrated Iron and Steel Manufacturing), Subpart L (Coke Ovens), Subpart EEEEE (Iron and Steel Foundries) for separate foundry operations
- Permit type: typically Title V with PSD permits for major modifications; PM-2.5 and lead modeling can be challenging given the historical lead nonattainment issues in Lake County
- Pay particular attention to fugitive emissions — coke ovens, BOF shop roof emissions, slag handling, and material storage are major issues

7.2 — Electric Arc Furnace (EAF) Steel and Foundries

Indiana has numerous EAF mini-mills (Steel Dynamics, Nucor) and a very large foundry sector. Permitting considerations:

- NSPS Subpart AAa for EAFs; the older Subpart AA for pre-1983 EAFs
- MACT Subpart YYYYY for area source EAFs
- MACT Subpart EEEEE for major source iron and steel foundries; Subpart ZZZZZ for area source foundries
- PM, lead, manganese, mercury, and chromium are key pollutants of concern
- DCS (Direct-Shell Evacuation Control) systems and canopy hoods drive much of the BACT analysis

7.3 — Petroleum Refining

BP Whiting is the dominant Indiana refinery. Permitting considerations:

- NSPS Subparts J and Ja for refineries — FCCU regenerators, sulfur recovery units, fuel gas combustion devices
- MACT Subpart CC (Refinery MACT 1) and Subpart UUU (Refinery MACT 2)
- Leak Detection and Repair (LDAR) — Subpart GGG and consent decree provisions
- Flaring — recent EPA emphasis on flare combustion efficiency under Subpart Ja
- Heavy enforcement history — most major Indiana refining projects are subject to or shaped by ongoing consent decrees

7.4 — Coal-Fired Electric Generating Units (EGUs)

Coal-fired EGUs remain a significant Indiana sector despite ongoing retirements. Permitting considerations:

- NSPS Subpart Da (newer EGUs); Subpart D for legacy units

- MATS — MACT Subpart UUUUU — applies to coal- and oil-fired EGUs (mercury, HCl, SO₂, PM)
- Cross-State Air Pollution Rule (CSAPR) NO_x and SO₂ ozone-season and annual budgets — Indiana is a CSAPR state
- Regional Haze program — BART and reasonable progress goals for SIP submissions
- Title V is mandatory; PSD applies to major modifications
- CO₂ Mandatory Reporting Rule (40 CFR Part 98 Subpart D) reporting required for all EGUs >25,000 metric tons CO₂e/year

7.5 — Automotive Manufacturing and Assembly

Indiana's automotive sector — assembly plants (Subaru, Toyota, Honda, Stellantis, GM) plus a deep supplier base — has heavy surface coating emissions. Permitting considerations:

- NSPS Subpart MM — Surface Coating of Automobile and Light-Duty Truck Bodies
- MACT Subpart IIII — Automobile and Light-Duty Truck Surface Coating (major source)
- MACT Subpart MMMM — Surface Coating of Miscellaneous Metal Parts and Products (for many suppliers)
- MACT Subpart PPPP — Surface Coating of Plastic Parts and Products
- VOC and HAP emissions from spray booths, prime/topcoat ovens, cleanup solvents are dominant
- Indiana's 326 IAC 8 series adds state VOC rules on top of federal MACT — verify both apply

7.6 — Chemical and Pharmaceutical Manufacturing

Indiana has a substantial chemical sector (BASF, Dow, Vertellus, etc.) and a major pharmaceutical industry (Eli Lilly, Roche). Permitting considerations:

- MACT Subpart FFFF — Miscellaneous Organic Chemical Manufacturing (MON)
- MACT Subpart GGG — Pharmaceutical Manufacturing
- MACT Subpart F/G/H/I — Hazardous Organic NESHAP (HON) for synthetic organic chemical manufacturing
- LDAR (40 CFR Part 63 Subpart H) for equipment leaks
- Wastewater air emissions (Subpart G) for processes with HAP-bearing wastewater

7.7 — Pulp and Paper

Indiana has multiple pulp and paper mills. Permitting considerations:

- MACT Subpart S — Pulp and Paper Industry
- MACT Subpart MM — Chemical Recovery Combustion Sources at Kraft and Soda Pulp Mills
- NSPS Subparts BB and BBa — Kraft Pulp Mills
- TRS (Total Reduced Sulfur) emissions can drive permit conditions

7.8 — Recreational Vehicle, Trailer, and Manufactured Housing

The Elkhart-Goshen area produces the majority of U.S. RVs and a substantial share of manufactured housing. Permitting considerations:

- MACT Subpart MMMM — Surface Coating of Miscellaneous Metal Parts and Products
- MACT Subpart WWWW — Reinforced Plastics Composites Production
- MACT Subpart JJJJJJ — Industrial, Commercial, and Institutional Boilers — area source
- Most facilities are FESOP synthetic minor sources, with carefully crafted VOC limits to stay below 100 tpy actuals

7.9 — Limestone Quarrying, Crushing, and Cement Manufacturing

Southern Indiana has extensive limestone operations and several cement plants. Permitting considerations:

- NSPS Subpart OOO — Nonmetallic Mineral Processing Plants (crushing, screening, conveyor transfer)
- NSPS Subpart F — Portland Cement Plants
- MACT Subpart LLL — Portland Cement Manufacturing Industry
- Fugitive dust is a major issue — paved/unpaved roads, material handling, wind erosion

7.10 — Ethanol and Biofuels

Indiana has multiple corn ethanol plants. Permitting considerations:

- MACT Subpart DDDDD — Industrial, Commercial, and Institutional Boilers (Boiler MACT, major source)
- MACT Subpart JJJJJJ — Boilers (area source)
- VOC and HAP emissions from fermentation vents, distillation, and DDGS dryers
- CO₂ emissions are substantial — Mandatory Reporting Rule applies

7.11 — Agriculture and Concentrated Animal Feeding Operations (CAFOs)

Indiana has significant hog, dairy, and poultry CAFO operations. Permitting considerations:

- Many CAFOs fall below construction permit thresholds but may need source registration
- Air emissions are primarily ammonia, hydrogen sulfide, particulate matter, and odor
- Indiana does not have separate CAFO air permit rules; standard 326 IAC 2 applicability tests apply
- Coordinate with Indiana Department of Agriculture and IDEM's Office of Land Quality on the broader CAFO permit package

7.12 — Food Processing, Brewing, and Grain Handling

Indiana has a substantial food sector. Permitting considerations:

- Grain receiving, drying, storage, and load-out — PM and VOC
- Spray drying, baking, roasting — VOC and HAP
- Brewery emissions — ethanol VOC from fermentation; many small breweries fall below permit thresholds but verify
- Many food facilities operate under GSOPs or FESOPs

CHAPTER 8: POST-PERMIT OBLIGATIONS

Receiving the permit is the beginning of compliance, not the end. This chapter walks through what you must do after issuance.

8.1 — Construction Start Notification

For construction permits, you must notify IDEM of the actual date construction begins. The notification typically must be submitted within 30 days of starting construction, via the IDEM e-services portal or in writing to the OAQ Permits Branch. Check the specific reporting language in your permit — some permits require advance notice.

8.2 — Initial Startup Notification

Within a specified period (typically 30 days) after initial startup of new emission units, you must submit a startup notification to IDEM. For sources subject to NSPS or NESHAP, federal regulations independently require notification — usually within 15 days of the actual startup date — and these federal notifications are typically required regardless of what your state permit says. File both.

8.3 — Initial Stack Testing (Performance Testing)

Most permits require initial stack testing within a defined window (usually 60 to 180 days after achieving normal operating conditions, or after startup, whichever is sooner). Stack testing process:

17. Develop a Pre-Test Protocol identifying all test methods, sampling locations, run durations, and operating conditions. Submit to IDEM at least 30 days before the proposed test date.
18. Receive IDEM written approval of the protocol (or address comments). Do not test before protocol approval — results from unapproved protocols can be rejected.
19. Hire an EPA-approved (or otherwise qualified) stack testing firm. Most large Indiana firms maintain rosters of approved testers.
20. Conduct testing using applicable EPA Reference Methods (Methods 1, 2, 3, 4, 5, 7, 9, 10, 18, 25, 25A, etc. as appropriate). For NSPS sources, use the Electronic Reporting Tool (ERT) format.
21. Submit the final test report within 60 days of test completion (federal default; check your permit for any shorter deadline). For NSPS sources, submit through EPA's CEDRI portal (cedri.epa.gov).

Failed initial stack tests are a serious matter — they can trigger NOVs, retesting requirements, and operational restrictions. Plan operations during the test carefully to ensure you can demonstrate compliance at maximum rated capacity.

8.4 — Continuous Emission Monitoring Systems (CEMS)

CEMS are required for many major emission units and for some MACT/NSPS standards. Common applications: SO₂ and NO_x on large boilers, CO on combustion turbines, opacity (COMS) on stacks. CEMS requirements include:

- Installation per 40 CFR Part 60 Appendix B Performance Specifications (PS-1 for opacity, PS-2 for SO₂/NO_x/CO/etc.)
- Initial certification testing (RATA — Relative Accuracy Test Audit — typically within 180 days of startup)
- Ongoing QA/QC under 40 CFR Part 60 Appendix F: daily zero/span checks, quarterly cylinder gas audits, annual RATA
- Quarterly excess emissions reports to IDEM (via e-services portal)

- Data availability minimum 95% per quarter on a unit-by-unit basis

8.5 — Recordkeeping

Indiana and federal recordkeeping requirements vary by source type, but common categories include:

- Emission unit operating logs (hours of operation, fuel consumption, throughput, production)
- Fuel sulfur content certifications (delivery-by-delivery)
- Control device operating parameters (pressure drop, scrubber pH, temperature, flow rates)
- Stack test reports and CEMS data files
- Maintenance and inspection records for emission control equipment
- Material usage records (especially for VOC/HAP-containing materials and coatings)
- Deviation logs
- Calibration records for monitoring devices

Retention period: Indiana generally requires records to be retained for 5 years, accessible to IDEM upon request. Title V records have a 5-year retention requirement under 326 IAC 2-7-5(3). Some MACT/NSPS standards may require longer retention — defer to the longest applicable period.

8.6 — Reporting Requirements

The major recurring reports for Indiana facilities are:

Annual Emissions Inventory (Emissions Statement)

Under 326 IAC 2-6 and 326 IAC 2-7, Title V sources and certain other major or moderate-sized sources must submit an annual emissions inventory. The Indiana submittal deadline is generally JULY 1 for the preceding calendar year — this is later than the federal default (often July 1 for state submittal of certain federal EI data; IDEM has aligned with this). Submission is through the IDEM e-services portal. Verify your facility-specific deadline in your permit.

Title V Annual Compliance Certification (ACC)

Title V sources must submit an Annual Compliance Certification (ACC) every year, certifying compliance status with every applicable requirement. The ACC must be signed by the Responsible Official. IDEM's standard ACC deadline is typically based on the permit anniversary — verify your specific deadline in your permit. The ACC must also be submitted to EPA Region 5.

Semiannual Deviation Reports

Under 326 IAC 2-7-5, Title V sources must submit semiannual reports identifying all instances of deviation from permit requirements, with dates, causes, and corrective actions. Reporting periods are typically January 1 to June 30 (report due July 31) and July 1 to December 31 (report due January 31). Even "no deviations" must be affirmatively reported.

Emission Events / Excess Emissions Notifications

Significant emission events (malfunctions, breakdowns, accidents) must be reported to IDEM as soon as practicable — typically by the next business day — with a written follow-up report within a defined window (often 30 days). Notification procedures are typically specified in your permit and at 326 IAC 1-6 (the spill/release reporting rule).

CEMS Quarterly Reports

CEMS-equipped units must submit quarterly excess emissions reports and CEMS performance reports within 30 days after the end of each calendar quarter.

Federal Greenhouse Gas Mandatory Reporting (40 CFR Part 98)

Any facility emitting $\geq 25,000$ metric tons CO₂e/year must report annually to EPA (not IDEM) by March 31 of the following year through EPA's e-GGRT system (ghgreporting.epa.gov).

NSPS / MACT Notifications and Reports

Each federal subpart has its own notification and report schedule. Use EPA's CEDRI portal (cedri.epa.gov) for electronic submittals where required.

8.7 — Permit Amendments and Modifications

Changes at your facility may require a permit amendment. IDEM uses several categories:

- Administrative Amendment (e.g., name change, ownership change without substantive change): minimal review, typically 30–60 days
- Minor Modification (Title V): added but doesn't change emission limits significantly; case-specific process
- Significant Modification (Title V): triggers full public notice and EPA review — treated essentially like a new Title V issuance
- NSR/PSD construction permit modifications: required for any physical change or change in method of operation that increases emissions, with the depth of review depending on the change magnitude

Some changes can be made under Indiana's "insignificant activities" provisions or as "section 502(b)(10)" changes (Title V) — these do not require a permit amendment but typically require notification. Read your permit carefully.

8.8 — Title V Renewal

Title V permits run for 5 years. IDEM requires renewal applications to be filed at least 6 months before expiration (12 months is strongly recommended). Filing timely preserves the "application shield" — your existing permit remains in effect while IDEM processes the renewal.

8.9 — IDEM Inspections

IDEM conducts both announced and unannounced inspections. Major sources are typically inspected every 1–2 years; minor sources every 2–5 years. During an inspection, expect IDEM to:

- Review recordkeeping, monitoring data, deviation logs, stack test results
- Walk through the facility to observe equipment, control devices, and operating practices
- Take opacity readings (Method 9) if combustion sources or particulate sources are present
- Interview operators about routine practices and recent abnormal events
- Request copies of records on the spot or by follow-up letter

NOTE: Inspection best practices: designate a single trained point of contact for IDEM (typically the environmental manager). Respond to all questions honestly, but do not volunteer speculation. Do

not allow access to areas outside the scope of the inspection without consulting counsel. Document the inspection contemporaneously (notebook log, photos as appropriate). Within a few days, send the inspector a courteous follow-up email summarizing what was reviewed and what records were left for follow-up. This creates a written record that may help in any later dispute.

CHAPTER 9: ENFORCEMENT AND PENALTIES

9.1 — IDEM Enforcement Tools

IDEM has a graduated set of enforcement responses:

- Notice of Violation (NOV) — formal letter identifying alleged violations and requesting response. Often the first step. A response is essentially mandatory; failure to respond escalates the matter.
- Compliance Letter — informal correspondence requesting corrective action without formal allegations
- Agreed Order — negotiated settlement that resolves alleged violations, often including civil penalties and a compliance schedule
- Administrative Order — IDEM-imposed order without negotiation; appealable to the Office of Environmental Adjudication
- Emergency Order — used in imminent health or environmental threats
- Civil judicial action — IDEM, through the Indiana Attorney General, may sue in state court for injunctive relief and penalties
- Criminal referral — for knowing or willful violations, especially those causing harm or involving falsification

9.2 — Civil Penalties

Under IC 13-30-4-1, civil penalties for violations of Indiana's air pollution laws can be up to \$25,000 per day per violation. "Per day" means each day of continuing violation counts separately, so even modest-seeming violations can compound rapidly.

Federal civil penalties under the Clean Air Act, as adjusted for inflation, are up to \$70,117 per day per violation (2025 amount; verify current at <https://www.federalregister.gov> for the most recent adjustment). EPA can pursue these penalties independently or jointly with IDEM in coordinated enforcement actions.

9.3 — Criminal Penalties

Knowing or willful violations of the Clean Air Act can be prosecuted criminally. Federal CAA criminal penalties include up to \$250,000 per day per violation for individuals (up to \$1 million for organizations) and up to 5 years imprisonment for knowing violations, with higher penalties for knowing endangerment. Indiana also has criminal provisions under IC 13-30-10 for false statements, falsified reports, and certain knowing violations.

9.4 — Penalty Calculation Factors

Both IDEM (through its Civil Penalty Policy) and EPA (through the BEN model and other tools) calculate penalties based on:

- Gravity of the violation (severity, duration, environmental harm)
- Economic benefit of noncompliance (savings from delayed or avoided compliance costs)
- History of violations at the facility
- Good faith and cooperation in addressing the violation
- Ability to pay (penalties may be reduced for documented financial hardship)
- Supplemental Environmental Projects (SEPs) — voluntary projects that reduce penalties by funding environmental improvements beyond compliance

9.5 — Voluntary Disclosure and Audit Programs

Indiana does not currently have a comprehensive environmental audit privilege statute. However:

- EPA's Audit Policy (revised, available at www.epa.gov/compliance/epas-audit-policy) provides significant penalty mitigation for facilities that voluntarily discover, promptly disclose, and correct violations meeting policy criteria
- IDEM may consider voluntary disclosure as a mitigating factor in its civil penalty determinations, particularly when paired with prompt corrective action
- Self-audits should be conducted under attorney-client privilege when possible; consult counsel before initiating any compliance audit that could uncover reportable issues

CHAPTER 10: SPECIAL TOPICS

10.1 — Greenhouse Gas (GHG) Permitting

GHG permitting in Indiana follows federal rules. The Supreme Court's *UARG v. EPA* decision (2014) means that GHGs alone do not trigger PSD — but if a project triggers PSD because of conventional pollutants, GHGs are subject to BACT review ("anyway sources"). The GHG significance level for BACT analysis is 75,000 tons CO₂e per year.

The federal Mandatory Greenhouse Gas Reporting Rule (40 CFR Part 98) requires annual reporting to EPA by facilities emitting ≥25,000 metric tons CO₂e/year. Reports are due March 31 to EPA's e-GGRT system. This is separate from any IDEM reporting.

10.2 — Class I Areas

There are no federal Class I areas located within Indiana. However, the following Class I areas in neighboring or nearby states may require Class I impact analysis for PSD projects near state borders:

- Mammoth Cave National Park (Kentucky)
- Sipsev Wilderness, Hercules-Glades Wilderness, and other Class I areas in farther states (rarely triggered unless emissions are very large)

If your facility is within 100 km of a Class I area, Federal Land Manager (FLM) notification is required during PSD review (40 CFR 52.21(p)). Coordinate FLM consultation early — the National Park Service and U.S. Fish and Wildlife Service are the FLMs for most relevant Class I areas, and they review for visibility, deposition, and ecosystem impacts.

10.3 — Environmental Justice (EJ)

EPA and IDEM have both increased emphasis on EJ analysis as part of permit review, particularly for new sources in communities already experiencing disproportionate environmental burdens. Use EPA's EJSCREEN tool (www.epa.gov/ejscreen) to identify EJ considerations early in project planning. Lake County (especially East Chicago and Gary) and parts of Indianapolis have been the focus of significant EJ attention in recent years.

10.4 — Regional Haze Program

Indiana is part of the federal Regional Haze program under the Clean Air Act. Indiana sources contribute to visibility impairment at Class I areas in surrounding states, and Indiana must periodically submit SIP revisions demonstrating reasonable progress. Large coal-fired EGUs have historically been the focus of BART (Best Available Retrofit Technology) requirements; ongoing reasonable progress determinations may add controls to additional sources.

10.5 — Cross-State Air Pollution Rule (CSAPR)

Indiana is subject to CSAPR for NO_x (annual and ozone-season) and SO₂. EGUs above defined size thresholds must hold sufficient CSAPR allowances each year. This is primarily an EGU compliance issue but affects siting and economics of new generation in the state.

10.6 — Permit Transfers

Indiana permits are issued to a specific entity at a specific location. When a facility changes hands, the buyer typically wants to assume the existing permit (rather than re-apply from scratch). The process:

22. Negotiate the transfer terms in the purchase agreement, including environmental representations and warranties
 23. Notify IDEM of the proposed transfer at least 30 days before closing
 24. Submit the IDEM permit transfer / change of ownership form, with both parties' signatures
 25. IDEM issues an Administrative Amendment recognizing the new owner
- Title V transfers typically take 30–60 days
 - Construction permit transfers can occur during construction but should be carefully timed around any pending modifications
 - The new owner inherits all compliance history, deviations, and outstanding enforcement matters — due diligence is essential

10.7 — Compliance Assurance Monitoring (CAM)

40 CFR Part 64 (CAM) requires major sources with large emission units controlled by post-process control equipment (achieving > 50% control efficiency) to establish monitoring of control device performance as part of their Title V permit. Indiana applies CAM through Title V at 326 IAC 2-7-5. Develop your CAM plan early in Title V applications — it must demonstrate that monitoring will detect deviations and is enforceable.

CHAPTER 11: RESOURCES, CONTACTS, AND USEFUL LINKS

11.1 — Indiana Department of Environmental Management (IDEM)

- Office of Air Quality (OAQ) Main Phone: (317) 232-8603 or (800) 451-6027
- Mailing Address: 100 N. Senate Avenue, IGCN 1003, Indianapolis, IN 46204-2251
- Website: www.idem.in.gov
- Air Quality Permits Page: www.in.gov/idem/airquality/permits/
- Online Services (E-Services Portal): idem.access.in.gov
- Forms Library: www.in.gov/idem/airquality/permits/forms/
- Permit Applications & Status Search: idem.access.in.gov
- Compliance Branch (inspections, enforcement): (317) 232-8603
- Small Business Environmental Assistance Program (SBEAP): (800) 988-7901
- Email: airpermits@idem.in.gov

11.2 — U.S. EPA Region 5

- Address: 77 West Jackson Boulevard, Chicago, IL 60604-3590
- Main Phone: (312) 353-2000 or (800) 621-8431
- Website: www.epa.gov/aboutepa/epa-region-5
- Air & Radiation Division — SIP review, Title V oversight, federal enforcement

11.3 — Key EPA National Resources

- AP-42 Emission Factors: www.epa.gov/air-emissions-factors-and-quantification/ap-42-compilation-air-emissions-factors
- RACT/BACT/LAER Clearinghouse (RBLC): <https://www.epa.gov/catc/ractbactlaer-clearinghouse-rblc-basic-search>
- Green Book (Nonattainment Designations): www.epa.gov/green-book
- NSPS / NESHAP Finder: www.epa.gov/stationary-sources-air-pollution
- Electronic Reporting Tool (ERT): www.epa.gov/electronic-reporting-air-emissions
- CEDRI Reporting Portal: cedri.epa.gov
- Greenhouse Gas Reporting (e-GGRT): ghgreporting.epa.gov
- EJSCREEN: ejscreen.epa.gov
- Air Dispersion Modeling (SCRAM): www.epa.gov/scram

11.4 — Indiana Statutes and Regulations

- Indiana Code Title 13 (Environment): iga.in.gov/laws/2024/ic/titles/13
- Indiana Administrative Code Title 326 (Air Pollution Control): iac.iga.in.gov/iac/title326.html
- Indiana Register (rulemaking notices): in.gov/legislative/iac/iar.html

11.5 — Key Federal Regulations

- 40 CFR Part 51 — SIP Requirements
- 40 CFR Part 52 — PSD Requirements
- 40 CFR Part 60 — New Source Performance Standards (NSPS)

- 40 CFR Part 61 — NESHAPs (pre-1990 standards)
- 40 CFR Part 63 — NESHAPs / MACT (post-1990 standards)
- 40 CFR Part 64 — Compliance Assurance Monitoring
- 40 CFR Part 70 — Title V Operating Permits
- 40 CFR Part 71 — Federal Title V (rarely triggered in delegated states)
- 40 CFR Part 98 — Mandatory Greenhouse Gas Reporting

11.6 — Professional Support

Air permitting is technical, deadline-driven, and enforcement-prone. For any major project, consider engaging:

- A licensed Professional Engineer (PE) experienced in air permitting in Indiana
- An air quality / environmental consulting firm familiar with IDEM practices
- An environmental attorney — especially for PSD, NA-NSR, enforcement matters, and transactions
- A specialized stack testing firm with current Indiana experience
- A modeling specialist for any PSD-level air dispersion modeling work

Indiana's Small Business Environmental Assistance Program (SBEAP) offers free, confidential, non-enforcement guidance to small businesses. SBEAP can be a valuable resource for facilities under 100 employees and below specified emission thresholds. Call (800) 988-7901.

CHAPTER 12: QUICK REFERENCE TIMELINE

This timeline shows the entire air permitting process from project definition through ongoing operations. Use it as a master checklist when planning any major Indiana air permitting project.

Phase / Action	Typical Timeline	Key Actions Required
PHASE 1: Project Definition	Months 1–2	Develop full project description: all emission units, fuels, throughput, stacks, control devices, operating hours. Identify all regulated pollutants. Build a project narrative document — this becomes the foundation of the permit application.
Applicability Determination	Month 1	Check 326 IAC 2-1.1-3(d) exemptions. If no exemption, calculate facility-wide PTE for every pollutant using AP-42, manufacturer data, mass balance, or stack test data. Compare to thresholds in 326 IAC 2-2, 2-3, 2-5.1, 2-5.5, 2-6, 2-7, and 2-9 to determine which permit type applies. Document the determination — keep in compliance file.
Federal Standards Review	Month 1–2	Check every potentially applicable NSPS (40 CFR Part 60) and NESHAP/MACT (40 CFR Part 63) subpart against every emission unit. Document applicability or non-applicability for each. Use EPA's NSPS/NESHAP finder and the federal subpart definitions — do not rely on summary tables.
PHASE 2: Pre-Application	Months 2–6	Conduct BACT/LAER analysis, air dispersion modeling, and offset acquisition (NA-NSR only). Hold a pre-application meeting with IDEM before submitting the formal application.
BACT / LAER Analysis	Months 2–4	Required for PSD (BACT) or NA-NSR (LAER) projects. Search EPA RBLC; rank control technologies; conduct top-down feasibility analysis with \$/ton cost-effectiveness calculations. Document every elimination step. Allow 6–10 weeks.
Air Dispersion Modeling	Months 3–5	Required for PSD projects. Submit modeling protocol to IDEM modeling staff for review BEFORE running production runs. Use AERMOD with current EPA-approved meteorological data for Indiana. Address terrain (southern IN), Lake Michigan shoreline (NW IN), and Class I area impacts (if within 100 km of Mammoth Cave, etc.).
Offset Acquisition	Months 3–6	ONLY for NA-NSR projects in Lake/Porter Counties. Identify available Emission Reduction Credits (ERCs) from existing sources in the same nonattainment area. Verify offset ratio (currently 1.15:1 to 1.3:1 depending on current Lake/Porter ozone classification — verify at www.epa.gov/green-book). Execute ERC purchase agreements. Submit ERC documentation to IDEM.
Pre-Application Meeting	Month 4–5	Email airpermits@idem.in.gov or call (317) 232-8603 to request. Provide a 1–3 page project summary in advance. Bring specific technical questions, BACT analysis draft, and modeling protocol. Free, confidential, non-binding.
PHASE 3: Application Preparation & Submission	Months 5–7	Assemble the complete application package, calculate the application fee, obtain Responsible Official signature, and submit via IDEM e-services or mail.

Application Submittal	Month 6–7	Submit via idem.access.in.gov (preferred) or to: IDEM Office of Air Quality, 100 N. Senate Avenue, IGCN 1003, Indianapolis, IN 46204-2251. Include application fee. Verify current fee schedule at www.in.gov/idem/airquality/permits/ . Retain submittal receipt.
PHASE 4: Agency Review	Months 7–18	IDEM conducts completeness review, technical review, RAI rounds, draft permit, public notice, and (for Title V) EPA review.
Completeness Review	30–60 days after submittal	IDEM has 30 days for non-Title V applications, 60 days for Title V. Respond promptly to any Notice of Deficiency (NOD) — typically within 30 days, or risk return of the application and forfeiture of fees.
Technical Review & RAIs	3–9 months	Reviewer issues RAIs (Requests for Additional Information). Respond promptly and thoroughly. Each round adds weeks; multiple rounds are common for complex projects. Keep an RAI log.
Draft Permit Issued	After technical review	Review the draft permit carefully — emission limits, monitoring conditions, recordkeeping requirements, permit shield language, references to NSPS/MACT subparts. Submit written comments within IDEM's stated deadline (typically 30 days).
Public Notice	30+ days	Newspaper notice in county of source plus posting on IDEM website. Standard 30-day public comment period. Public hearing may be held if requested or if significant interest demonstrated.
Response to Comments	After comment period	IDEM issues a written Response to Comments document addressing all substantive comments. The applicant may need to revise the permit in response to comments.
EPA 45-Day Review (Title V Only)	45 days	Title V proposed permits go to EPA Region 5, Chicago, for mandatory 45-day federal review. EPA may object; objections must be resolved before issuance.
Permit Issuance	After all reviews	IDEM issues final permit electronically (and often paper). DO NOT BEGIN CONSTRUCTION BEFORE THIS POINT — penalties under IC 13-30-4-1 can reach \$25,000/day/violation plus \$70,117/day federal.
PHASE 5: Construction	Months 12–24+	Begin construction; install equipment; order and commission control devices.
Construction Start Notice	Within 30 days of start	Submit construction-start notification through idem.access.in.gov per permit conditions. Some permits require advance notice — check your specific permit language.
Equipment Installation	Per project schedule	Install equipment in accordance with permit specifications. Document any deviations from the as-permitted design — they may require a permit amendment before continuing.
PHASE 6: Startup & Initial Testing	Months 18–30	Notify IDEM of startup; conduct initial stack testing and CEMS certification.
Startup Notification	Within 30 days of startup (or 15 days for federal)	Submit IDEM startup notification per permit. Also submit any required NSPS/NESHAP notifications under federal rules (often within 15 days). File both.

Pre-Test Protocol	≥30 days before initial stack test	Submit pre-test protocol to IDEM identifying methods, sampling locations, run lengths, and operating conditions. Wait for IDEM approval before testing.
Initial Stack Test	Typically 60–180 days after startup	Conduct test using EPA Reference Methods at maximum rated capacity. Use a qualified stack testing firm. Submit final report within 60 days of test (per federal default; check your permit). For NSPS sources, submit via CEDRI (cedri.epa.gov).
CEMS Certification (RATA)	Within 180 days of startup	Conduct CEMS performance specification testing (PS-1, PS-2, etc.) and Relative Accuracy Test Audit (RATA) under 40 CFR Part 60 Appendix B. Submit certification report to IDEM and EPA.
PHASE 7: Ongoing Operations	Years 2–5 and beyond	Recordkeeping, reporting, inspections, amendments, and Title V renewal.
Daily Recordkeeping	Ongoing	Maintain operating logs, fuel usage records, fuel certifications, control device parameter logs, material usage records, maintenance records, calibration records, deviation logs. Retain at least 5 years (longer if required by specific NSPS/MACT subpart).
CEMS Quarterly Reports	Within 30 days of quarter end	Submit CEMS excess emissions and performance reports via idem.access.in.gov . Maintain data availability ≥95%.
Semiannual Deviation Reports (Title V)	Due July 31 and January 31	Required under 326 IAC 2-7-5. Report all deviations from permit conditions for each 6-month period (Jan–Jun and Jul–Dec). "No deviations" must still be affirmatively reported. Submit via idem.access.in.gov .
Annual Emissions Inventory (AEI)	DUE JULY 1 each year	Indiana's AEI deadline is JULY 1 for the preceding calendar year's emissions. Submit through idem.access.in.gov for all Title V sources and other applicable sources. Verify your facility-specific deadline in your permit.
Title V Annual Compliance Certification	Per permit anniversary	Submit Annual Compliance Certification (ACC) signed by Responsible Official. Send to IDEM AND EPA Region 5. Verify your facility-specific deadline in your permit.
GHG Mandatory Reporting	Due March 31 each year	Required for facilities ≥25,000 metric tons CO ₂ e/year. Submit annual report to EPA (NOT IDEM) via e-GGRT (ghgreporting.epa.gov) for prior calendar year emissions.
Emission Events / Excess Emissions Notice	Next business day	Notify IDEM as soon as practicable — typically by next business day — of malfunctions, breakdowns, or accidental releases. Submit written follow-up report within 30 days per 326 IAC 1-6 and your permit terms.
Permit Amendments	Before any change	Submit permit amendment application BEFORE any physical change or operational change that increases emissions or alters conditions. Administrative amendments: 30–60 days. Minor Title V mods: case-specific. Significant Title V mods: similar timeline to initial issuance.
Title V Renewal Application	6–12 months before permit expiration	IDEM minimum is 6 months before expiration; submit 12 months early to be safe. Timely application preserves the "application shield" — your permit remains effective until IDEM acts on the renewal.

IDEM Inspections	Every 1–5 years	Title V / major sources typically inspected every 1–2 years; minor sources every 2–5 years. Inspections may be announced or unannounced. Have records readily available; have a designated trained point of contact; document the inspection contemporaneously.
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NOTE: KEY INDIANA ITEMS TO REMEMBER: (1) Indiana's Annual Emissions Inventory deadline is JULY 1 for the preceding calendar year. Mark this on the corporate compliance calendar early — it is the most frequently missed annual deadline by facilities new to Indiana. (2) IDEM is the sole statewide air permitting agency; there are no county or municipal air permit programs in Indiana. (3) Lake and Porter Counties are ozone nonattainment areas, triggering Emission Offset (Nonattainment NSR) requirements rather than PSD for ozone precursors (NO_x, VOC) — always verify the current Lake/Porter classification at www.epa.gov/green-book before designing a project, because EPA periodically reclassifies these areas. (4) Indiana uses Source Registration (326 IAC 2-6) and General Source Operating Permits (326 IAC 2-9) as streamlined pathways for small or standardized sources, but most new equipment installations still require pre-construction approval. (5) There are no federal Class I areas inside Indiana, but Mammoth Cave National Park is close enough to the southern Indiana border to trigger Federal Land Manager review for some PSD projects.